

EPA Compliance Assistance Workshops Don't Reduce Violations

Lessons from “The Effect of Compliance Assistance on Pollution Discharges and Violations of Environmental Regulations” by Paul J. Ferraro & Jay P. Shimshack in *Journal of Policy Analysis and Management*, 2026.

Offering polluting facilities free help to follow the rules doesn't make them more likely to follow them. New research studying hundreds of facilities that were offered free compliance assistance workshops found the workshops didn't reduce violations.

BACKGROUND

Environmental enforcement in the U.S. has long centered on inspecting facilities, catching violations, and levying fines. **Compliance assistance** takes a different approach: regulators offer workshops, technical guidance, and other support to help facilities understand and meet regulatory requirements. This approach reflects the belief that many violations result from confusion or limited expertise rather than deliberate corner-cutting. Compliance assistance programs have become increasingly popular as a policy lever, but evidence on whether they are effective is scarce.

In a new study, Ferraro and Shimshack (2026) find that compliance assistance workshops did not reduce regulatory violations or pollution discharges. The researchers analyzed data from hundreds of Ohio wastewater treatment facilities that had recently been cited for violations and were invited to attend workshops rolled out over several months.

THE CHALLENGE

Evaluating whether compliance assistance programs are effective is difficult to do in practice. Simply comparing the behavior of facilities before vs. after receiving the training risks attributing program success to changes in behavior that are actually driven by other factors. For example, facilities may be more likely to attend these workshops after they have received a warning for a violation or a fine. If an unusually bad year is followed by a more normal one, then the facility may have reduced its pollution whether it received the training or not. Indeed, the researchers show that trained facilities had received more violations prior to receiving the training.

Simply comparing facilities that attended the training to facilities that didn't also raises concerns. The facilities that sign up for a workshop might be the ones already run by managers who take compliance seriously, making the program look successful, or the ones that have recently been in trouble, making the program look worse! Comparing attendees and non-attendees might simply reflect who chose to walk through the door, not what they learned once inside.

To avoid these concerns, Ferraro and Shimshack compared facilities that received the training early to facilities that had signed up but not yet received the training. Arguably, these facilities would have had similar motivations and similar histories. The absence of differences between these facilities prior to receiving the training provides support for this.

NO EFFECT ON VIOLATIONS OR DISCHARGES

Trained facilities were no less likely to violate environmental regulations, or reduce water pollution, than facilities that had not yet been trained.

THE WORKSHOPS' EFFECT ON VIOLATIONS, MONTH BY MONTH

Source: Ferraro & Shimshack (2026), Fig. 2a.



Note: This figure shows the estimated effect of compliance assistance workshops on the number of facility violations. Each dot shows whether facilities had more (above the zero line) or fewer (below the zero line) violations in a given month relative to the workshop month (vertical dashed line). The estimates account for each facility's usual number of violations, the local weather, and any common trends shared across facilities; the shaded band shows the range of estimates within the 95% confidence interval. If the workshops had an effect on violations, the line would drop below zero after the workshop.

While compliance assistance programs presume that facilities violate because they do not fully understand the rules, Ferraro and Shimshack find no support for that view: the workshops supplied the technical guidance facilities were supposedly lacking, and neither violations nor discharges changed. At least in this context, a lack of understanding does not appear to be what was holding compliance back.

FOR MORE INFORMATION

Ferraro, Paul J., and Jay P. Shimshack. 2026. "The Effect of Compliance Assistance on Pollution Discharges and Violations of Environmental Regulations." *Journal of Policy Analysis and Management* 45 (3): e70056. doi.org/10.1002/pam.70056.

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